EXECUTIVE ORDER
AUTHORIZING THE ALIEN PROPERTY CUSTODIAN
TO SELL CERTAIN PROPERTY AT PRIVATE SALE

CHIEF CLERK
SEP 5 1924
DEPARTMENT OF STATE

By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate, and punish trading with the Enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such act embodied in "An act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, for and in consideration of the sum of SEVENTY-FIVE THOUSAND ($75,000.00) DOLLARS, certain real estate now being held and administered by him as such Alien Property Custodian, and heretofore, upon requirement, conveyed, transferred, assigned and delivered to him as the property of JOHN OTTERSTEDT, residing in Germany, whom, after investigation, he did determine to be an enemy within the purview of said Act as amended, which said real estate is situate in the City of New York, State of New York, and described as follows, to wit:-

1332-1334 Second Avenue and 957 Cauldwell Avenue.

My reasons for the foregoing determination, order, rule and regulation are:

(a) An advantageous offer for the purchase of said real estate has been received by the Alien Property Custodian, accompanied by the assent of the alien interests to the sale;

(b) Liquidation is necessary, in order to provide for the payment of claims under the Act of March 4, 1923, and for the satisfaction of a past due mortgage;

(c) The property is in a bad state of repair, and will require the expenditure of trust funds to properly condition it;

(d) An attempted sale at public auction would not be of any advantage and would involve unnecessary expense, delay and inconvenience, which should be avoided.

Thomas W. Miller

The White House,

September 5, 1924.